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UNIVERSITY OF MALAKAND
(ACADEMIC SECTION)

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No. UOM/Acad/24/297 Dated: 12-Sep-2024

NOTIFICATION

It is notified for the information of all concerned that the Syndicate in its 56th meeting held on 31-Jul-2024 [vide agenda item 2(5)] on recommendations of the 20th meeting of the Academic Council held on 18-Apr-2024, approved the *"University of Malakand Regulations for Drug and Tobacco Abuse, 2024 and onwards"*.

Encl: *(Signed copy of the Regulations referred above)*

Assistant Registrar Academics

Copy for information and necessary action (if any) to:

1. All Deans
2. Heads of All Teaching Departments, Administrative Section/Offices
3. Mr. Saleemullah Sohoo, office of the Seleemullah Sohoo, Director (R&AA). *Higher Education Commission, Sector H-9 Islamabad with reference to policy referred above.*
4. Director QEC
5. PS to Vice-Chancellor
6. PA to Registrar
7. Relevant File

Assistant Registrar Academics

University of Malakand

Regulations for Drug and Tobacco Abuse, 2024 and Onwards

Assistant Registrar
(Academics)
University of Malakand
05-Dec-2023

These Regulations are framed under Section 29(1)(j) of the Government of Khyber Pakhtunkhwa Universities Act 2012 (Amended).

1. Short Title, Commencement and Application:

i. These regulations may be called the "University of Malakand Regulations for Drug and Tobacco Abuse, 2024 and Onwards".
ii. These Regulations shall come into force with immediate effect.
iii. These Regulations shall be applicable to students, faculty, staff and visitors (including individuals associated with outsourced services) in the premises of University of Malakand (campus(es), class rooms, hostels, play grounds, libraries, laboratories, cafeterias & transport etc.)

2. Definitions

In these regulations, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them:

i. "**ADTC**" Anti-Drug And Tobacco Committee constituted under Section 4 of these Regulations.
ii. "**ANF**" Anti-Narcotics Force.
iii. "**Drug(s)**" This includes "narcotic drugs" as defined in the Control of Narcotics Substances Act, 1997 as well as "psychotropic substance" listed in the Schedule to the Act, pharmaceutical drugs, sedatives and tranquilizers described in The Drugs Act, 1976 if used without a prescription or authorization, and alcohol prohibited by The Prohibition (Enforcement of Hadd) Order (4 of 1979).
iv. "**Drug Abuse**" Possession, use or the sale or distribution of such drugs.
v. "**Focal Person**" The Focal Person appointed under Section 4 of these Regulations.
vi. "**HEC**" Higher Education Commission.
vii. "**HEI**" Higher Education Institute.
viii. "**NGO**" Non-Governmental Organization.
ix. "**Smoking**" Smoking shall have the same meaning as it does under the Prohibition of Smoking and Protection of Non-Smokers Health Ordinance, 2002.
x. "**Smoke free**" Smoke free shall mean the prohibition of smoking and other use of tobacco in accordance with the provisions of the Prohibition of Smoking and Protection of Non-Smokers Health Ordinance, 2002.
xi. "**Anti-Tobacco Legislation**" The 'Prohibition of Smoking and Protection of Non-Smokers Health Ordinance, 2002,' or any other anti-tobacco legislation in the university jurisdiction, as applicable.
xii. "**Illicit Smoking**" Smoking in any form for the consumption of drug and is considered as drug abuse.
xiii. "**University"** University of Malakand.

3. Preamble

3.1. Drug abuse and smoking pose serious risks to human health and the social life of the community and have significant economic and environmental costs.

3.2. According to the United Nations Office of Drugs and Crime (UNODC)'s 2020 World Drug Report, in 2018, more than 35 million people suffered from the consequences of drug abuse. In fact, the

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number of drugusers worldwide is on the rise with cannabis being the most commonly used drug.[1] Other commonly useddrugs include alcohol, methamphetamine, heroin, amphetamine-type stimulus (ATS), cocaine, ecstasy, opium, poly drug (a combination of several drugs), pharmaceutical cocktails, tranquilizers and sedatives.Factors contributing towards drug abuse include easy access to drugs at low prices, rapidly changing social norms, existence and presence of drug dens and cartels, unemployment and economic distress, lack of awareness on drug abuse within the family and in educational institutions, mental health problems(such as anxiety, depression, anger, guilt, grief, low self-esteem, frustration, rejection etc.), curiosity/urge to experiment, influence of media portrayals, peer pressure, lack of support by parents, the family and the community. To address the problem, the Federal Government has passed various laws including theControl of Narcotics Substance Act, 1997 and the Drugs Act, 1976, which proscribes the possession and distribution of illicit drugs and alcohol with penalties for violations provided in the Code of Criminal Procedure up to and including capital punishment.

3.3. With respect to smoking, the World Health Organization documents that more than 8 million people die each year from tobacco use with 1.2 million of these deaths from passive smoking alone and many othersfacing tobacco-related health complications. Accordingly, the Federal Government enacted the Prohibition of Smoking and Protection of Non-smokers Health Ordinance, 2002 (Ordinance No. LXXIV of2002) to limit smoking at public places of work or use and in public service vehicles (except in designatedareas) and to outlaw tobacco storage, sale, or distribution in the vicinity of educational institutions. Individuals and institutions who violate the law may face the penalty set out in sections 11 (a) and (b) ofthe Ordinance.

3.4. Like all other institutions, universities have a legal responsibility to implement all relevant national laws and policies and should join hands with all stakeholders including psychologists and psychiatrists, social workers, NGOs, and others to address the problem of unlawful drug and tobacco abuse.

3.5. To ensure that University contribute to the reduction of drug abuse and smoking, these regulations has been made pursuant to the powers granted to the HEC under the Higher Education Commission Ordinance, 2002. It is binding on all HEIs in the country, whether operating in the public or private sectors. Violations or failures to comply with the HEC's policies may lead to regulatory action being taken against non- compliant HEIs. The policy supplements national and provincial legislation on drug and tobacco use including the Drugs Act, 1976, the Control of Narcotics Substances Act XXV, 1997, the Drug Regulatory Act, 2012, and the Prohibition of Smoking in Enclosed Places and Protection of Non-smokers Health Ordinance, 2002 (Ordinance No. LXXIV of 2002)

4. ANTI-DRUG & TOBACCO COMMITTEE AND FOCAL PERSONS FOR DRUG AND TOBACCO ABUSE

4.1. **Anti-Drug & Tobacco Committee (ADTC):** The university shall constitute an "Anti-Drug & Tobacco Committee" comprising of five members duly notified by the Vice Chancellor of the university. Sub-campus(es) of the university shall also establish its own sub-committee constituted

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on a similar pattern to perform similar duties.

4.2. **Composition of the ADTC**: The committee shall consist of:

a. Provost shall be the Chair (ex-officio)
b. two members from the faculty (one male and one female) , both female in case of women sub-campus
c. one senior student from the student proctorial board
d. HOD/relevant faculty from the department of Psychology (ex-officio)
e. Director Administration (Member) (ex-officio)
f. Chief Proctor (Secretary) (ex-officio)

General Provisions for work of the ADTC:

a. for the purpose of a meeting of the accessibility committee, three members shall constitute a quorum.
b. in absence of the Chair, the senior most member shall act as Chair of the meeting.
c. The members at serial No. 4.2 (b) shall be nominated by the Vice Chancellor and hold office for a period of three years.
d. One senior student at serial No. 4.2(c) shall be nominated by the Chief Proctor for a period of one year and in no case be eligible for re-appointment for more than one similar term.

4.3. **Roles and Responsibilities of the ADTC**: The committee will be responsible for ensuring a drug free and smoke free environment in the university and to take measures to safeguard the interests of the students in the following ways:

i. inquiring into, investigating and resolving any matter regarding the usage/consumption, sale and distribution illegal drugs in the university;
ii. inquiring into, investigating and resolving any matter regarding the violation of Anti-Tobacco Legislation at the university;
iii. coordinating with and connecting students to rehabilitative services including counselling, medical care and helplines when needed;
iv. raising awareness on the prevalence, problems and persistence of drug abuse and tobacco consumption;
v. providing advice to University regarding the implementation of these regulations and relevant legislation;
vi. ensuring effective coordination with all relevant stakeholders inside and outside the university;
vii. maintaining close liaison with hostel wardens for implementation of these regulations and may relocatethe reasonably suspected student for drug abuse or found addicted student; and
viii. taking any other appropriate measures including but not limited to testing of an accused from any authorized laboratory.

4.4. **Focal Person for Drug and Tobacco Abuse**: Director Administration shall be appointed as Focal

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Person for matters related to Drug Abuse and unlawful tobacco consumption. The Focal Person will act as a liaison for the members of the university to the ADTC. If a student, staff, or faculty member feels that he or she needs medical and/or mental health assistance and counselling or would like to report Drug Abuse or smoking, the student, faculty or staff member may reach out to the Focal Person who will connect the individual to the services requested or refer the matter to the ADTC to begin an inquiry as the case may be.

5. EFFORTS TO PREVENT DRUG AND TOBACCO ABUSE

5.1. Undertake efforts to prevent drug abuse, smoking and illicit smoking.

5.2. Awareness raising against drug abuse and tobacco consumption:

i. Drug abuse: Possession, use, distribution and sale of drugs is prohibited in Pakistan. The university must ensure that students, staff and faculty are aware of the legal and disciplinary penalties for drug possession, distribution and sale.

ii. Smoking: Display banners/charts/posters/labels etc. in accordance with the prohibition of smoking under Anti-Tobacco Legislation. All students should be made aware of the adverse effects of smoking on health.

5.3. **Awareness Raising Strategies**: In order to create and promote awareness and to educate people about the negative effects of drug and tobacco use and its prohibition, the ADTC shall take the following measures: -

i. All newly admitted students and newly appointed faculty/staff members shall attend a mandatory hour-long orientation session, arranged by the university for awareness.

ii. An undertaking in the form set forth in Annex-A&B shall be signed by all existing and newly recruited faculty, staff members, and admitted students, and shall be submitted to the Registrar Office and Provost office respectively.

iii. The university shall distribute drug and tobacco awareness material through student handbooks and pamphlets, including in the admissions materials (for awareness of both parents and students), incorporating details about the HEC policy (as well as its web link). This may include graphical images/pictorial illustrations of the adverse health effects of drug and tobacco consumption.

iv. The relevant warnings under these regulations as well provisions related to punishments for violations shall be displayed on the notice board of each sections/departments of the university.

v. Awareness raising campaigns throughout the academic year including seminars, walks, workshops, and lectures shall be arranged in collaboration with ANF, NGOs, and professionals from reputable rehabilitation centers. Events may be organized if the university is in session in connection with the 'International Drug Abuse Day' (June 26th) and 'World No Tobacco Day' (May 31st).

vi. To create awareness against drugs abuse and smoking and strengthen prevention interventions.

vii. Any other programs the ADTC may determine appropriate from time to time.

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5.4. **Activities and Programs**: Students must be encouraged to participate in a diverse array of programs as healthy engagements that may prevent any inclination toward smoking or Drug Abuse. These include (but are not limited to):

i. extra and co-curricular activities on campus such as theater, dramatics etc.
ii. community service including plantation, distribution of food amongst the disadvantaged, volunteer work at old/shelter homes;
iii. shall include the community engagement and service related courses at the undergraduate level;
iv. fitness, exercise, sports and athletic activities;
v. Students, faculty and administrative staff of the university who have volunteered and worked extraordinarily for implementation of these regulations shall be publicly acknowledged andconferred upon the certificate of appreciation on 'International Drug Abuse Day' (June 26th)and/or 'World No Tobacco Day' (May 31st) annually;
vi. hosting and monitoring of recreational events to provide an avenue to bring together students without drug and tobacco use; and
vii. any other program the ADTC may determine from time to time.

5.5. **Engaging student clubs, organizations and societies and collaboration with other organizations**: Student societies can additionally be engaged by the university in awareness raising activities. University may collaborate withvarious governmental/non-governmental organizations, effectively working for the cause to eradicate drug abuse and discourage tobacco consumption. Through these liaisons, the students can also be provided with an opportunity to volunteer and facilitate ADTC's workings.

6. SUPPORT FOR MEMBERS OF UNIVERSITY DEALING WITH DRUG AND/OR TOBACCO ADDICTION/DEPENDENCE

6.1. To ensure that students, faculty, and staff facing drug and/or tobacco addiction/dependence are provided with adequate support. The following support shall be provided:

6.2. **On campus Counsellor/Psychologist/Psychiatrist**: A counsellor, psychologist, or psychiatrist available at the university shall help students, staff and faculty members by guiding them through any problems or issues such as peer pressure and demotivation which often lead to drug and tobacco consumption. Any student suffering from any mental health issues, such as anxiety, depression, or post-traumatic stress disorder may also seek assistance of the trained professional. If the student requires further assistance, the counsellor/psychologist/psychiatrist may refer the student to rehabilitative services. For this purpose, the university shall maintain a list of such services.

6.3. **Coordination with Parents**: In case a student's parents have been notified pursuant to the provisions of Section 8.2 or Section 8.3 of these regulations, the university shall endeavor to coordinate with the parents of such students for purposes of helping the students with rehabilitation and facilitating their return to their studies in case of any gap.

6.4. **Helpline**: The university shall establish a helpline that students, faculty and staff can call whenever they face a mental health issue or a situation in which they may have been tempted to use drugs or

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tobacco. This helpline will be staffed by a trained counsellor and a team of trained volunteers. Volunteers may include student, faculty, or staff. The helpline may refer students to the on-campus counsellor/psychologist/psychiatrist, rehabilitative services, the ADTC or the relevant Focal Person.

6.5. **De-stigmatization of the affected students and university members**: Because students, faculty and staff using drugs may need significant medical and psychological assistance, all those who seek support for drug or tobacco dependence and addiction from the Focal Persons, counsellors/psychologists/psychiatrists and the helpline will receive counselling on a confidential basis. Provided that, in the event that a student requires medical attention for drug use the university shall promptly inform the student's parents of the matter and coordinate with them to assure the best care for the student.

7. COMPLAINT PROCEDURE

7.1. **Regular inspection/monitoring**: Director Administration, Campus security, Chief Proctor, members of the Proctorial Board and Provost office shall undertake frequent and random visits through relevant mechanism to the cafeterias, canteens, tuck shops, classrooms, hostels and other such places susceptible to the sale, usage and distribution of drugs/tobacco and stop any suspicious and illicit activity occurring in contravention of these regulations and relevant legislation.

7.2. **Training programs**: Staff and faculty may receive training aimed at understanding behavior indicative ofdrug abuse so that they may refer such matters to the Focal Person in order to protect the health of the students.

7.3. **Complaint**: Any person associated with the university including (but not limited to) the student, faculty member, non-teaching staff, administrative staff, or a visitor may submit a complaint in writing to the Focal Person (Director Administration), stating that any person has engaged in drug abuse, illicit smoking, or the unlawful sale or distribution of drugs/tobacco at the university. The identity of the whistle blower/complainant shall be kept confidential. The Focal Person will forward the complaint to the committee without revealing the identity of the whistle blower. The Focal Person shall maintain a proper record of all complaints.

7.4. **Initial Scrutiny**: Each complaint shall be assessed based on shared information. Complaints substantive in nature and associated with sufficient supporting documents/evidence shall be considered for further investigation by the ADTC.

7.5. **Investigation**: The ADTC shall investigate all non-frivolous complaints before making its decision through the following process:

i. Initiation of an inquiry.

ii. The body of facts or information (evidence) that the ADTC uses could be:

- Eye witness evidence
- Physical evidence – individual found in possession of any illegal substance, individual found intoxicated (proven by a drug test) or individual caught distributing any illegal drugs or tobacco on campus
- Video recording of the security cameras
- Any other documentary/graphical evidence

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iii. A personal hearing/s with the accused prior to any checking.

iv. Random testing/checking of possessions/individuals by campus security on the recommendation of the committee.

7.6. **Decision**: All complaints shall be decided by the ADTC within one month of their receipt and the ADTC's recommendations shall be communicated to the concerned in writing. The university may assign penalties as detailed in section 8 of these regulations.

7.7. **Appeal**: An appeal to the decision may be made by the aggrieved within fifteen working days of the receipt of the decision to the Vice Chancellor, who shall review the recommendations of the ADTC and uphold, minimize, or revert the decision made by the committee within seven working days. The decision taken by the Vice Chancellor shall be final.

7.8. **False Complaint**: In the event that the ADTC determines that a false allegation was made in the complaintwith malafide intent, it may send its findings along with its recommendations to the Vice Chancellor to take disciplinary action against the complainant.

8. PENALTIES

8.1 To discourage drug abuse and smoking, the university may impose the penalties detailed below:

8.2 **Drug Abuse**: For drug-related violations, the university may, on recommendation by the ADTC, take disciplinary action against students, staff, faculty, and visitors in the following way:

i. In case of minor infractions, the ADTC may refer the offender to the in-house counsellor/psychologist/psychiatrist to undergo medical and mental health treatment. This referral must be in writing and require the completion of the counselling or rehabilitative program within seven working days.

ii. In the event of a significant violation and/or repeated violations of these Regulations, the ADTC shall recommend issuance of warning which may lead to rustication/expulsion of the student and suspension of the staff member, as the case may be. Further, the university may proceed in accordance with the reporting requirements under the applicable law.

iii. If a student, faculty, or staff member is involved in the distribution or sale of illicit drugs, the university shall report the violation to the appropriate authorities which may include law enforcement agencies.

iv. In the event a visitor is found on the premises engaging in any drug-related offense, campus security shall immediately report the violation to the appropriate authorities including law enforcement agencies.

8.3 **Smoking**: For smoking-related violations, the university may, on recommendation by the ADTC, impose the following penalties:

i. For a first violation, the ADTC shall recommend the university to issue a warning letter and a notice of displeasure;

ii. For a second violation, the ADTC shall recommend suspension of the student for one week or more from the premises of the university with parental notification for students and disciplinary action for faculty and staff as per the university regulations;

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iii. For a third violation or more, the ADTC shall recommend a longer suspension depending on the severity of the violation and further disciplinary action for faculty and staff as per university regulations.

iv. In case any visitor is found smoking in the university premises, the visitor shall be fined up to Rs. 5,000 by the university through Focal Person/ADTC.

v. In case of any unlawful sale or distribution of tobacco on the premises of the university, the violator shall be fined up to Rs. 20,000 by the university and shall be reported to the appropriate authorities including law enforcement agencies.

9. ENFORCEMENT OF THESE REGULATIONS

9.1. **Survey/ Feedback mechanism**: An annual survey shall be conducted, asking students and staff members to respond to an anonymous close ended questionnaire related to matters covered under these regulations. In case the student body is large, survey shall be conducted through random sampling. The office of the Focal Person shall analyze the findings and present them to the ADTC for review and comment.

9.2. **Compliance reports**: University must submit annual compliance reports along with survey reports by December31st of each year to the HEC in a format prescribed by the HEC from time to time.

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Annex- A

UNDERTAKING

Roll number/ Registration Number	
Program Title/Departments	
Name	
CNIC/CRC Number	
Contact Number	
Father/ Guardian's Name	
Father/ Guardian's Contact Number	
Gender	
Date of Birth	
Mark of Identification	
Blood Group	
Any Disability	
Any Existing Medical Problem or Mental-Health Issues	
Taking any Medicine on a Regular Basis (if yes,please give details)	

I _____ son/daughter of _____certify that I am/shall not be involved in any kind of drug abuse (bringing into the campus/consuming or encouraging consumption of drug and narcotics substances) or the unlawful use of tobacco products at the university. The university is authorized to examine me for drug abuse at any time and to take any measure to ensure the implementation of the Regulations**.** Moreover, my parents shall be informed if I am found involved in any drug / tobacco related unlawful activity. Further, I have read and I am aware of the provisions of University of Malakand Regulations for Drug and Tobacco Abuse, 2024 and Onwards.

Signature — Signature of Father/ Guardian (for students)

Dated: …… — Dated: ……

Note: Please submit this undertaking form at the Provost office after admission in the university. For current students of the university, please submit in accordance with the timelines prescribed by the university.

ANNEX-B

UNDERTAKING FOR FACULTY AND STAFF

Name	
Designation	
Department/Section	
CNIC/CRC Number	
Contact Number	
Gender	
Date of Birth	
Mark of Identification	
Blood Group	
Any Disability	
Any Medical Problem or Mental-Health Issues	
Taking any Medicine on a Regular Basis (if yes, please give details)	

I___ son/daughter of _____certify that I am/shall not be involved in any kind of drug abuse (bringing into the campus/consuming or encouragingconsumption of drug and narcotics substances) or the unlawful use of tobacco products at the university. The university is authorized to examine me for drug abuse at any time and to take any measure to ensure the implementation of the Regulations**.** Further, I have read and I am aware of the provisions of University of Malakand Regulations for Drug and Tobacco Abuse, 2024 and Onwards.

_____

Signature
Dated:

Note: Please submit this undertaking form at the Registrar office after joining the university. For current members of the university, please submit in accordance with the timelines prescribed by the university.